

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Craig Anderson	Team: Squad #07	CCRB Case #: 201411695	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 10/24/2014 4:43 PM	Location of Incident: Intersection of Legion Street and Riverdale Avenue and the 69th Precinct Stationhouse	18 Mo. SOL 4/24/2016	Precinct: 73		
Date/Time CV Reported Wed, 11/19/2014 9:51 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 11/19/2014 9:51 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. POM Terrence Smith	10635	943828	069 PCT
3. SGT Johnny Wong	02201	937753	069 PCT
4. DT3 Brett Raso	05399	924376	069 DET

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Wildor Saintval	27121	946209	069 PCT
2. SDS Hugh Sinclair	00281	893658	069 DET

Officer(s)	Allegation	Investigator Recommendation
A . SGT Johnny Wong	Abuse: At the intersection of Legion Street and Riverdale Avenue in Brooklyn, Sgt. Johnny Wong stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Exonerated
B . SGT Johnny Wong	Force: At the intersection of Legion Street and Riverdale Avenue in Brooklyn, Sgt. Johnny Wong pointed his gun at § 87(2)(b)	B . Exonerated
C . POM Terrence Smith	Force: At the intersection of Legion Street and Riverdale Avenue in Brooklyn, PO Terrence Smith pointed his gun at § 87(2)(b)	C . Exonerated
D . Officers	Abuse: At the intersection of Legion Street and Riverdale Avenue in Brooklyn, officers drew their guns.	D . Unfounded
E . DT3 Brett Raso	Discourtesy: At the 69th Precinct stationhouse, Det. Brett Raso spoke discourteously to § 87(2)(b)	E . Unsubstantiated

Case Summary

On October 24, 2014 at 4:43 p.m., Sgt. Johnny Wong, PO Terrence Smith, and PO Wildor Saint-Val stopped § 87(2)(b)'s car at Riverdale Avenue and Legion Street in Brooklyn, on the suspicion that the car was involved in the robbery of Jetro Cash & Carry (**Allegation A**). § 87(2)(b) was a passenger in § 87(2)(b)'s car, and § 87(2)(b) the robbery victim, was in the officers' car at the time of the stop. After getting out of the police car, PO Smith pointed his gun at § 87(2)(b) and Sgt. Wong pointed his gun at § 87(2)(b) (**Allegations B and C**). The officers searched and handcuffed § 87(2)(b) and § 87(2)(b). Additional officers arrived later, and § 87(2)(b) stated that several of the additional officers also drew their guns (**Allegation D**). § 87(2)(b) said he told the officers that § 87(2)(b) looked different from the man who robbed him, and that he never saw the driver of the car, but § 87(2)(b) and § 87(2)(b) were arrested and taken to the 69th Precinct stationhouse. At the stationhouse, Det. Brett Raso spoke to § 87(2)(b) and allegedly called him an "asshole" (**Allegation E**). § 87(2)(b) was incarcerated for several days until a judge dismissed all charges associated with this incident (encl. 13D).

§ 87(2)(b)

Mediation, Civil, and Criminal Histories

This case was ineligible for mediation because § 87(2)(b) planned to file a lawsuit. As of February 13, 2015, nearly one month past the 90-day filing deadline, no notice of claim relating to this case has been filed with the Comptroller's office (encl. 57J) [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

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Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) or § 87(2)(b) § 87(2)(g)
- Sgt. Wong has been a member of the NYPD for ten years and there are four prior CCRB complaints against him, none of which were substantiated (encl. 4A).
- PO Smith has been a member of the NYPD for eight years. He has one prior CCRB complaint against him, which was unsubstantiated (encl. 5A).
- Det. Raso has been a member of the NYPD for fifteen years. He has two prior CCRB complaints against him, both of which were exonerated (encl. 6A).
- § 87(2)(g)

Findings and Recommendations

Allegations Not Pleaded

- **Gun Pointed:** In his phone statement, § 87(2)(b) stated that PO Saint-Val also pointed his gun (encl. 11B). However, § 87(2)(b) failed to appear for two scheduled interviews with the CCRB and did not provide a sworn statement. All three officers said PO Saint-Val did not draw his gun, and § 87(2)(b) did not even mention the presence of a third officer in the car that stopped him. § 87(2)(g)

§ 87(2)(b)

- § 87(2)(g) [REDACTED]

Explanation of Subject Officer Identification

Sgt. Wong was the highest-ranking officer who participated in the vehicle stop. § 87(2)(g) [REDACTED]

Det. Raso was identified based on § 87(2)(b) [REDACTED]'s description (see encl. 12E for § 87(2)(b) [REDACTED]'s description and encl. 31A for Det. Raso's pedigree information). § 87(2)(g) [REDACTED]

Recommendations

Allegation A – At the intersection of Legion Street and Riverdale Avenue in Brooklyn, Sgt. Johnny Wong stopped the car in which § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] were occupants.

§ 87(2)(b) [REDACTED] stated that he had been parked at the location of the car stop for about one half-hour before the incident, socializing with friends, and that he started his car just before the officers stopped him (encl. 12D-E). § 87(2)(b) [REDACTED] corroborated this in his unverified phone statement (encl. 11B). § 87(2)(b) [REDACTED] did not have the names of the friends he was with at the time of his interview. He said he would try to provide them later but did not do so.

Sgt. Wong, PO Smith, and PO Saint-Val all stated that they had a description of a black Toyota Avalon (encl. 16C-D, 25C, and 29C). They all said that the car was driving on the street when they observed it, and that § 87(2)(b) [REDACTED] pointed it out to them, stating that he recognized the car as the one that the robbers fled in. § 87(2)(b) [REDACTED] confirmed that he went with the officers to canvass after the robbery and that he recognized the car (encl. 11C). The police communications radio recording confirmed that the officers had a description of a black, older-model Toyota Avalon that fled east on Foster Avenue from Jetro Cash & Carry (encl. 34A-B). Department of Motor Vehicles records show that § 87(2)(b) [REDACTED]'s car is a 2001 black Toyota Avalon (encl. 47A-C).

To meet the “reasonable suspicion” standard necessary to stop a car, officers must have a “particularized and objective basis for suspecting criminal activity.” This must be based on an assessment of all the relevant circumstances, including the details of the vehicle description, the location of the car and direction of travel, and the time passed since the crime. People v. Scheu, 177 Misc.2d 922 (1998 – Dist. Ct. Nassau County) (encl. 2A-D).

According to Google Maps, the location of the stop is 1.3 miles driving distance from Jetro Cash & Carry and it would take approximately eight minutes to complete that drive (encl. 9A). The 911 call was placed at 4:27 p.m., and – based on the radio recording – § 87(2)(b) [REDACTED] was stopped at approximately 4:56 p.m., about thirty minutes after the robbery.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] it is recommended that **allegation A be exonerated.**

Allegation B – At the intersection of Legion Street and Riverdale Avenue in Brooklyn, Sgt. Johnny Wong pointed his gun at § 87(2)(b)

Allegation C – At the intersection of Legion Street and Riverdale Avenue in Brooklyn, PO Terrence Smith pointed his gun at § 87(2)(b)

It is undisputed that Sgt. Wong pointed his gun at § 87(2)(b) and PO Smith pointed his gun at § 87(2)(b). Sgt. Wong stated that he pointed his gun at § 87(2)(b) because § 87(2)(b) opened the car door and looked like he was about to run. When prompted by his union representative, he added that he also pointed it because § 87(2)(b) told him that, during the robbery, § 87(2)(b) “simulated” a weapon by reaching into his coat pocket as though he might have a gun. § 87(2)(b) did not actually see a weapon. PO Smith said he pointed his gun at § 87(2)(b) because § 87(2)(b) attempted to flee and § 87(2)(b) told him that § 87(2)(b) had his hand in his pocket in a way that made it seem as though he might be armed. § 87(2)(b) did not attempt to flee. PO Saint-Val corroborated that § 87(2)(b) appeared like he planned to run, and that § 87(2)(b) told them § 87(2)(b) had his hand in his pocket in a way that suggested he might have a gun. In his phone statement, § 87(2)(b) said he told the officers he was unsure if the robbers had a weapon because the robbery occurred quickly. He did not mention anything about a robber “simulating” a weapon, but he also had difficulty recalling specifics of this incident. § 87(2)(b) did not know whether § 87(2)(b) tried to run when the car was stopped. In his phone statement, § 87(2)(b) said that the police approached as he was entering § 87(2)(b)'s car.

The police department “permits an officer broad discretion to display his weapon whenever he feels that his life or the life of another is endangered,” so long as his or her actions are reasonable when considering the totality of the surrounding circumstances. Police Department v. Gliner, OATH Index No. 955/00 (encl. 3A-T).

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§ 87(2)(g) It is therefore recommended that **allegations B and C be exonerated.**

Allegation D – At the intersection of Legion Street and Riverdale Avenue in Brooklyn, officers drew their guns.

§ 87(2)(b) alleged that additional officers who arrived after Sgt. Wong, PO Smith, and PO Saint-Val also pointed their guns at him. He described one of these officers in detail, but the investigation did not identify any officers who matched that description. He could not describe any additional officers. § 87(2)(b) did not allege that additional officers pointed their guns in his phone statement, but because he was uncooperative with providing an in-person statement, the issue was never clarified. Sgt. Wong, PO Smith, and PO Saint-Val denied that any other officers drew their guns, and PO Saint-Val added that there would have been no reason for them to do so, because they had already handcuffed § 87(2)(b) and § 87(2)(b) before any other officers responded.

On the radio recording, the three officers requested additional units to transport the men about five minutes after they announced the stop, and there was no mention of any other units responding before they made this request. § 87(2)(g)

It is recommended that **allegation D be unfounded.**

Allegation E - At the 69th Precinct stationhouse, Det. Brett Raso spoke discourteously to

§ 87(2)(b) stated that, before taking him to the 71st Precinct stationhouse, Det. Raso interviewed him about his suspected involvement in other robberies. During the interview, Det. Raso allegedly called him an “asshole” several times.

Det. Raso denied that he or any other member of the 69th Precinct Detective Squad interviewed § 87(2)(b) because the arrest was made by patrol officers and they would handle those duties. He said that his only conversation with § 87(2)(b) was to explain that he would be put in a lineup for a different robbery. He denied calling § 87(2)(b) an “asshole” or using any obscenities toward him (encl. 31C).

§ 87(2)(b) stated that he and Det. Raso were the only people present when Det. Raso called him an “asshole.” § 87(2)(g) it is recommended that **allegation E be unsubstantiated.**

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Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date